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# THE SCHOOL OF PLANNING AND ARCHITECTURE ACT, 2014

## ACT NO. 37 OF 2014

[18*th December*, 2014.]

An Act to establish and declare Schools of Planning and Architecture as Institutions of national importance in order to promote education and research in architectural studies including planning of human settlements.

BE it enacted by Parliament in the Sixty-fifth Year of the Republic of India as follows:—

## CHAPTER I

### PRELIMINARY

**1. Short title and commencement.**—(*1*) This Act may be called the School of Planning and Architecture Act, 2014.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act, and any reference to the commencement in any such provision of this Act shall be construed as a reference to the commencement of that provision.

**2. Declaration of certain Schools as Institutions of national importance.**—Whereas the objects of the Schools mentioned in the Schedule are such as to make them Institutions of national importance, it is hereby declared that each such School is an Institution of national importance.

**3. Definitions.**—In this Act, unless the context otherwise requires,—

(*a*) "Board", in relation to any School, means the Board of Governors thereof;

(*b*) "Chairperson" means the Chairperson of the Board;

(*c*) "Corresponding School", in relation to a School mentioned in column (3) of the Schedule, means the School as specified against the said School in column (5) of the Schedule;

(*d*) "Council" means the Council established under sub-section (*1*) of section 33;

(*e*) "Director", in relation to any School, means the Director thereof;

(*f*) "existing School" means the School mentioned under column (3) of the Schedule;

(*g*) "Member" means a Member of the Board and includes the Chairperson;

(*h*) "notification" means a notification published in the Official Gazette and the expression "notify" with its grammatical variations and cognate expressions shall be construed accordingly;

(*i*) "prescribed" means prescribed by rules made under this Act;

(*j*) "Registrar", in relation to any School, means the Registrar thereof;

(*k*) "Schedule" means the Schedule annexed to this Act;

(*l*) "School" means any of the Schools mentioned in column (5) of the Schedule and such other Schools established under this Act;

(*m*) "Senate", in relation to any School, means the Senate thereof;

(*n*) "Society" means any of the societies registered under the Societies Registration Act, 1860 (21 of 1860) or under the societies of respective State Governments and mentioned in column (3) of the Schedule;

(*o*) "Statutes" and "Ordinances", in relation to any School, means the Statutes and Ordinances of that School made under this Act.

1. 22nd January, 2015, *vide* notification No. S.O. 212(E), dated 22nd January, 2015, *see* Gazette of India, Extraordinary, Part II, sec. 3(*ii*).

## CHAPTER II

## THE SCHOOLS

**4. Establishment and incorporation of Schools.**—On and from the date of commencement of this Act, the Schools specified in column (3) of the Schedule, shall be the body corporates having perpetual succession and a common seal with the power subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable and to contract and shall by their respective names mentioned in column (5) of the Schedule, sue or be sued.

**5. Objects of Schools.**—Each School shall have the following objects, namely:—

(*i*) to support the establishment and development of Schools of Planning and Architecture;

(*ii*) to provide global leadership in the field of architecture, planning and allied fields.

**6. Effect of incorporation of Schools.**—On and from the commencement of this Act,—

(*a*) any reference to any existing School in any contract or other instrument shall be deemed as a reference to the corresponding School;

(*b*) all properties, movable and immovable, of or belonging to every existing School shall vest in the corresponding School mentioned under column (5) of the Schedule;

(*c*) all the rights, debts and other liabilities of every existing School shall be transferred to, and be the rights and liabilities of, the corresponding School;

(*d*) every person employed by every existing School shall hold his office or service in the corresponding School with the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held if this Act had not been enacted and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the School in accordance with the terms of the contract with the employee or, if no provision is made therein in this behalf, on payment, to him by the School, of compensation equivalent to three months' remuneration in case of permanent employees and one month's remuneration in the case of other employees:

Provided further that any reference, by whatever form of words, to the Director, Registrar and other officers of an existing School in any law for the time being in force, or in any instrument or other document, shall be construed as a reference to the Director, Registrar and other officers of the corresponding School;

(*e*) every person pursuing, before the commencement of this Act, any academic or research course in every existing School, shall be deemed to have migrated and registered with the corresponding School on such commencement at the same level of study in the School from which such person migrated;

(*f*) all suits and other legal proceedings instituted or which could have been instituted by or against an existing School, immediately before the commencement of this Act shall be continued or instituted by or against the corresponding School.

**7. Powers and functions of Schools.**—(*1*) Subject to the provisions of this Act, every School shall exercise the powers and perform the duties as specified below, namely:—

(*a*) to organise and undertake research and innovations in architecture, planning, design and allied activities in such manner as the School may think fit, including in collaboration or association with any other School, educational institution, research organisation or body corporate;

(*b*) to hold examinations and grant degrees, diplomas, certificates and other degrees;

(*c*) to institute fellowships, Scholarships and confer awards, honorary degrees or other academic distinctions or titles;

(*d*) to fix, demand and receive fees and other charges;

(*e*) to establish, maintain and manage halls and hostels for the residence of students;

(*f*) to supervise and control the residence and regulate the discipline of students of the School and to make arrangements for promoting their health, general welfare and culture and corporate life;

(*g*) to notify academic and other posts with the prior approval of the Central Government and to make appointment thereto excluding the post of Director;

(*h*) to appoint persons working in any other School or educational institution or involved in research of significance in any industry as adjunct, guest or visiting teachers of the School on such terms and for such duration as the School may decide;

(*i*) to frame Statutes and Ordinances and to alter, modify or rescind the same;

(*j*) to establish and maintain such infrastructure as may be necessary;

(*k*) to deal with any property belonging to or vested in the School in such manner as the School may deem fit for advancing the objects of the School;

(*l*) to manage the fund of the School and receive gifts, grants, donations or benefactions from the Government and to receive bequests, donations and transfers of movable or immovable properties from testators or donors or transferors, as the case may be;

(*m*) to co-operate with educational or other institutions in any part of the world having objects wholly or partly similar to those of the School by exchange of teachers, students and scholars and generally in such manner as may be conducive to their common objects on such terms as may be specified from time to time by the Senate;

(*n*) to undertake consultancy in the areas or disciplines relating to the School for promotion of its common objectives; and

(*o*) to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the School.

(*2*) Notwithstanding anything contained in sub-section (*1*), a School shall not dispose of in any manner any immovable property without the prior approval of the Central Government.

**8. Schools to be open to all races, creeds and classes.**—(*1*) Every School shall be open to persons of either sex and of whatever race, creed, caste or class, religion, disability, domicile, ethnicity, social or economic background.

(*2*) No bequest, donation or transfer of any property shall be accepted by any School, which in the opinion of the Council involves conditions or obligations opposed to the spirit and object of this section.

**9. Teaching at Schools.**—All teaching at each of the Schools shall be conducted by or in the name of the School in accordance with the Statutes and Ordinances made in this behalf.

**10. School to be a distinct legal entity not-for-profit.**—Each School shall be a not-for-profit legal entity and no part of the surplus, if any, in revenue of such School, after meeting all expenditure in regard to its operations under this Act, shall be invested for any purpose other than for the growth and development of such School or for conducting research therein.

**11. Visitor.**—(*1*) The President of India shall be the Visitor of every School.

(*2*) The Visitor may appoint one or more persons to review the work and progress of any School and to hold inquiries into the affairs thereof and to report thereon in such manner as the Visitor may direct.

(*3*) Upon receipt of any such report, the Visitor may take such action and issue such directions as he considers necessary in respect of any of the matters dealt with in the report and the School shall be bound to comply with such directions within reasonable time.

## CHAPTER III

### THE AUTHORITIES OF SCHOOLS

**12. Authorities of Schools.**—The following shall be the authorities of a School, namely:—

(*a*) a Board of Governors;

(*b*) a Senate; and

(*c*) such other authorities as may be declared by the Statutes to be the authorities of the School.

**13. Board of Governors.**—(*1*) The Board of each School shall be the principal executive body of that School.

(*2*) The Board of every School shall consist of the following Members, namely:—

(*a*) Chairperson to be appointed by the Visitor from among a panel of three names recommended by the Central Government who shall be an eminent Architect or Planner;

(*b*) Principal Secretary or Secretary, Technical Education or Higher Education of the respective State Government or Union territory in which the School is situated;

(*c*) one representative from the Institute of Town Planners, India to be nominated by the President of the Institute of Town Planners, India;

(*d*) one representative from the Council of Architecture to be nominated by the President of the Council of Architecture;

(*e*) a representative from the All India Council for Technical Education to be nominated by the Chairman of All India Council of Technical Education;

(*f*) a representative of the University Grants Commission;

(*g*) one expert from the professions of architecture or landscape architecture or urban design and one from Urban and Regional Planning nominated by the Council of School of Planning and Architecture;

(*h*) two representatives from Senate; one each from Department of Planning and Department of Architecture, by rotation, for a period of two years, in order of seniority;

(*i*) two persons not below the rank of Joint Secretary to the Government of India to be nominated by the Central Government from amongst persons dealing with technical education and finance or their nominee, *ex officio*;

(*j*) one person not below the rank of Joint Secretary to the Government of India to be nominated by the Government of India, Ministry of Urban Development;

(*k*) the Director of the School, Member, *ex officio*;

(*l*) the Registrar of the School shall act as a Secretary to the Board.

**14. Term of office of vacancies among, and allowances payable to, Members of Board.**—Save as otherwise provided in this section—

(*a*) the term of office of the Chairperson or any other Members of the Board shall be five years from the date of his nomination;

(*b*) the term of office of an *ex officio* Member shall continue so long as he holds the office by virtue of which he is a Member;

(*c*) the term of office of a Member nominated under clause (*h*) of section 13 shall be two years from the date of nomination or till he holds the office whichever is earlier;

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(*d*) a casual vacancy of a Member shall be filled up in accordance with the provisions of section 13;

(*e*) the term of office of a Member nominated to fill a casual vacancy shall continue for the remainder of the term of the Member in whose place he has been nominated; and

(*f*) the Members of the Board shall be entitled to such allowances, if any, from the School as may be specified in the Statutes, for attending meetings of the Board or as may be convened by the School but no Member other than the Members referred to in clauses (*h*), (*k*) and (*l*) of sub-section (*2*) of section 13 shall be entitled to any salary by reason of this clause.

**15. Powers and functions of Board.**—(*1*) Subject to the provisions of this Act, the Board of every School shall be responsible for the general superintendence, direction and control of the affairs of the School and shall have all the powers of School not otherwise provided for by this Act, the Statutes and the Ordinances, and shall have the power to review the acts of the Senate.

(*2*) Without prejudice to the provisions of sub-section (*1*), the Board of every School shall have the following powers, namely:—

(*a*) take decisions on questions of policy relating to the administration and working of the School;

(*b*) establish departments, faculties or schools of studies and initiate programmes or courses of study at the School;

(*c*) make Statutes governing the administration, management and operations of such School;

(*d*) appoint persons to academic and non-academic section of the School;

(*e*) consider and modify or cancel Ordinances;

(*f*) consider and pass resolutions on the annual report, the audited accounts and the budget estimates of the School for the next financial year as it thinks fit and submit them to the Council together with a statement of its development plans;

(*g*) provide, by Statutes, the qualifications, criteria and processes for appointment to teaching and other posts in such School;

(*h*) exercise such other powers and perform such other duties as may be conferred or imposed upon it by this Act or the Statutes.

(*3*) The Board shall have the power to appoint such committees, as it considers necessary for the exercise of its powers and the performance of its duties under this Act.

(*4*) The Board shall conduct an annual review of the performance of the Director with specific reference to his leadership in the context of the achievement of the objects of the School.

(*5*) The Board shall in exercise of powers and discharge of functions strive, to the extent possible, to provide autonomy in academic matters to the Senate and Departments or Faculties or Schools, as the case may be.

(*6*) Where in the opinion of the Director or the Chairperson, the situation is so emergent that an immediate decision needs to be taken in the interest of the School, the Chairperson, on the recommendation of the Director may issue such orders as may be necessary, recording the grounds in his opinion:

Provided that such orders shall be submitted for ratification of the Board in the next meeting.

**16. Senate.**—(*1*) The Senate of every School shall consist of the following persons, namely:—

(*a*) the Director of the School, Chairman of the Senate, *ex officio*;

(*b*) five persons, from amongst the educationists of repute or eminent professionals, who are not in the service of the School, nominated by the Chairperson of the Board of Governors;

(*c*) a nominee of the Institute of Town Planners, India;

(*d*) a nominee of the Council of Architecture;

(*e*) a nominee of All India Council for Technical Education;

(*f*) Dean in charge of academic, research, student affairs, faculty welfare and planning and development of the School;

(*g*) all the Heads of the Departments;

(*h*) all Professors other than the Heads of the Departments;

(*i*) four Members of the teaching staff, representing Associate Professors and the Assistant Professors of the School, by rotation, for a period of two years:

Provided that an employee of the School shall not be eligible for the membership referred to in clauses (*b*), (*c*), (*d*) and (*e*).

(*2*) The term of the Members of the Senate other than *ex officio* Members shall be two years.

**17. Functions of Senate.**—(*1*) Subject to the provision of this Act, the Statutes and the Ordinances, the Senate of a School shall be the principal academic body of the School and be responsible for the maintenance of standards of instruction, education and examination in the School and shall have such other powers and perform such other duties as may be conferred or imposed upon it by the Statutes.

(*2*) Without prejudice to the provisions of sub-section (*1*), the Senate shall have the following powers, namely:—

(*a*) to specify the criteria and process for admission to courses or programmes of study offered by the School;

(*b*) to recommend to the Board for creation of teaching and other academic posts, determination of the number and emoluments of such posts and defining the duties and conditions of service of teachers and other academic posts;

(*c*) to recommend to the Board for the commencement of new programmes and courses of study;

(*d*) to specify the broad academic content of programmes and courses of study and to undertake modifications therein;

(*e*) to specify the academic calendar and approve grant of degrees, diplomas and other academic distinctions or titles;

(*f*) to exercise such other powers and discharge such other functions as may be assigned to it, by Statutes or by the Board.

**18. Chairperson of Board.**—(*1*) The Chairperson shall ordinarily preside at the meeting of the Board and at the convocations of the School.

(*2*) It shall be the duty of the Chairperson to ensure that the decisions taken by the Board are implemented.

(*3*) The Chairperson shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes.

**19. Director.**—(*1*) The Director of a School shall be appointed by the Central Government with the prior approval of the Visitor, on such terms and conditions of service as may be provided by the Statutes.

(*2*) The Director shall be the principal academic and executive officer of the School and shall be responsible for the implementation of the decisions of the Board and Senate and day-to-day administration of the School.

(*3*) The Director shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes or delegated by the Board or the Senate or the Ordinances.

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(*4*) The Director shall submit annual reports and audited accounts to the Board.

**20. Registrar.**—(*1*) The Registrar of every School shall be appointed on such terms and conditions as may be laid down by the Statutes and shall be the custodian of records, the common seal, the funds of the School and such other property of the School as the Board shall commit to his charge.

(*2*) The Registrar shall act as the Secretary of the Board, Senate and such committees as may be prescribed by the Statutes.

(*3*) The Registrar shall be responsible to the Director for the proper discharge of his functions.

(*4*) The Registrar shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes or by the Director.

**21. Other authorities and officers.**—The powers and duties of authorities and officers other than those mentioned above shall be determined by the Statutes.

**22. Review of performance of School.**—(*1*) Every School shall, within seven years from the establishment and incorporation of School under this Act and thereafter at the expiration of every fifth year, constitute, with the prior approval of the Central Government, a Committee to evaluate and review the performance of the School in achievement of its objects in the said period.

(*2*) The Committee constituted under sub-section (*1*) shall consist of members of acknowledged repute in academia or industry, drawn from such fields of knowledge as may have relevance to teaching, learning and research in such School.

(*3*) The Committee shall assess the performance of School and make recommendations to the Board in accordance with the provisions laid down in Statutes.

**23. Grants by Central Government.**—For the purpose of enabling the Schools to discharge their functions efficiently under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to every School in each financial year such sums of money in such manner as it may think fit.

## CHAPTER IV

### ACCOUNTS AND AUDIT

**24. Fund of School.**—(*1*) Every School shall maintain a Fund to which shall be credited to—

(*a*) all moneys provided by the Central Government;

(*b*) all fees and other charges received by the School;

(*c*) all moneys received by the School by way of grants, gifts, donations, benefactions, bequests or transfers;

(*d*) all moneys received by the School from utilisation of intellectual property arising from research conducted or provision of advisory or consultancy services by it; and

(*e*) all moneys received by the School in any other manner or from any other source.

(*2*) All moneys credited to the Fund of every School shall be deposited in such banks or invested in such manner as the School may, with the approval of the Finance Committee and the governing body, decide.

(*3*) The fund of any School shall be applied towards meeting the expenses of the School, including expenses incurred in the exercise of its powers and discharge of its duties under this Act.

**25. Accounts and audit.**—(*1*) Every School shall maintain proper accounts and other relevant records and prepare annual statement of accounts including the balance sheet in such form and accounting standard as may be specified by notification, by the Central Government in consultation with the Comptroller and Auditor-General of India.

(*2*) Where the statement of income and expenditure and the balance sheet of the School do not comply with the accounting standards, the School shall disclose in its statement of income and expenditure and balance sheet, the following, namely:—

(*a*) the deviation from the accounting standards;

(*b*) the reasons for such deviation; and

(*c*) the financial effect, if any, arising out of such deviation.

(*3*) The accounts of every School shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by audit team in connection with such audit shall be payable by the School to the Comptroller and Auditor-General of India.

(*4*) The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the School shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts and, in particular shall have the rights to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the School.

(*5*) The accounts of every School as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament in accordance with such procedure as may be laid down by the Central Government.

**26. Pension and provident fund.**—(*1*) Every School may constitute for the benefit of its employees such provident or pension fund or provide such insurance scheme as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(*2*) Where such provident fund or pension fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 (19 of 1925), shall apply to such fund, as if it were a Government provident fund.

**27. Appointments.**—All appointments of the staff of every School, except that of the Director, shall be made in accordance with the procedure laid down in the Statutes, by:—

(*a*) the Board, if the appointment is made on the academic staff in the post of Assistant Professor or if the appointment is made on the non-academic staff in every cadre the maximum of the pay scale for which exceeds prevalent grade pay scale for Group 'A' Officers;

(*b*) the Director, in any other case.

**28. Statutes.**—Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) the conferment of honorary degrees;

(*b*) the formation of departments of teaching and centres for research;

(*c*) the fees to be charged for courses of study in the School and for admission to the examinations of degrees and diplomas of the School;

(*d*) the institution of fellowship, scholarships, exhibitions, medals and prizes;

(*e*) the term of office and the method of appointment of officers of the School;

(*f*) the qualifications of teachers of the School;

(*g*) the classification, the method of appointment and the determination of the terms and conditions of service of teachers and other staff of the School;

(*h*) the constitution of pension, insurance and provident funds for the benefit of the officers, teachers and other staff of the School;

(*i*) the constitution, powers and duties of the authorities of the School;

(*j*) the establishment and maintenance of halls and hostels;

(*k*) the conditions of residence of students of the School and the levying of fees for residence in the halls and hostels and of other charges;

(*l*) the allowances to be paid to the Chairperson and Members of the Board;

(*m*) the authentication of the orders and decisions of the Board; and

(*n*) the meetings of the Board, the Senate, or any Committee, the quorum at such meetings and the procedure to be followed in the conduct of their business.

**29. Statutes how made.**—(*1*) The first Statutes of each School shall be framed by the Central Government with the approval of the Visitor and a copy of the same shall be laid as soon as may be before each House of Parliament.

(*2*) The Board may, from time to time, make new or additional Statutes or may amend or repeal the Statutes in the manner provided in this section.

(*3*) Every new Statutes or addition to the Statutes or any amendment or repeal of Statutes shall require the prior approval of the Visitor who may grant assent or withhold assent or remit it to the Board for consideration.

(*4*) New Statutes or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor:

Provided that the Central Government with the prior approval of the Visitor may frame or amend the Statutes for the School, if the same is required for uniformity and a copy of the same shall be laid as soon as may be before each House of Parliament.

**30. Ordinances.**—Subject to the provisions of this Act and the Statutes, the Ordinances of every School may provide for all or any of the following matters, namely:—

(*a*) the admission of the students to the School;

(*b*) the courses of study to be laid down for all degrees and diplomas of the School;

(*c*) the conditions under which students shall be admitted to the degree or diploma courses and to the examinations of the School, and shall be eligible for degrees and diplomas;

(*d*) the conditions of award of the fellowships, scholarships, exhibitions, medals and prizes;

(*e*) the conditions and mode of appointment and duties of examining bodies, examiners and moderators;

(*f*) the conduct of examinations;

(*g*) the maintenance of discipline among the students of the School; and

(*h*) any other matter which by this Act or the Statutes is to be or may be provided for by the Ordinances.

**31. Ordinances how made.**—(*1*) Save as otherwise provided in this section, Ordinances shall be made by the Senate.

(*2*) All Ordinances made by the Senate shall have effect from such date as it may direct, but every Ordinance so made shall be submitted, as soon as may be, to the Board and shall be considered by the Board at its next meeting.

(*3*) The Board shall have power by resolution to modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

**32. Tribunal of Arbitration.**—(*1*) Any dispute arising out of a contract between a School and any of its employees shall, at the request of the employee concerned or at the instance of the School,

be referred to a Tribunal of Arbitration consisting of one Member appointed by the School, one Member nominated by the employee, and an umpire appointed by the Visitor.

(*2*) The decision of the Tribunal shall be final and shall not be questioned in any court.

(*3*) No suit or proceeding shall lie in any court in respect of any matter, which is required by sub-section (*1*) to be referred to the Tribunal of Arbitration.

(*4*) The Tribunal of Arbitration shall have power to regulate its own procedure:

Provided that the Tribunal shall have regard to the principles of natural justice while making such procedure.

(*5*) Nothing in any other law for the time being in force relating to arbitration shall apply to arbitrations under this section.

## CHAPTER V

## THE COUNCIL

**33. Establishment of Council for Schools.**—(*1*) With effect from such date as the Central Government may, by notification, specify in this behalf, there shall be established for all Schools specified in column (3) of the Schedule, a central body to be called the Council.

(*2*) The Council shall consist of the following members, namely:—

(*a*) the Minister in charge of the Ministry or Department of the Central Government having administrative control of the technical education, *ex officio*, as Chairperson;

(*b*) two Members of the Parliament of India (one Member to be nominated by the Speaker of Lok Sabha and one member to be nominated by the Chairman of Rajya Sabha), *ex officio;*

(*c*) the Secretary to the Government of India in charge of the Ministry or Department of the Central Government having administrative control of the technical education, *ex officio*, as Vice-Chairperson;

(*d*) the Chairperson of every Board, *ex officio*;

(*e*) the Director of every School, *ex officio*;

(*f*) the Chairman, University Grants Commission, *ex officio*;

(*g*) the President, Council of Architecture, New Delhi, *ex officio*;

(*h*) the President, Institute of Town Planners, India, *ex officio*;

(*i*) the Chairman, Indian Institute of Architects, *ex officio*;

(*j*) the President, Institution of Surveyors of India, *ex officio*;

(*k*) two Secretaries to the Government of India to represent the Ministries or Departments of the Central Government dealing with Urban Development and Defence, *ex officio;*

(*l*) the Chairman, All India Council for Technical Education, *ex officio*;

(*m*) three persons to be nominated by the Visitor, at least one of whom shall be a woman, having special knowledge or practical experience in respect of Architecture or Landscape Architecture or Urban Design and one from Urban and Regional Planning, *ex officio*;

(*n*) two Secretaries to the State Government, from amongst the Ministries or Departments of that Government dealing with technical education where the Schools are located, *ex officio*;

(*o*) Financial Advisor, dealing with the Ministry of Human Resource Development, Department of the Central Government, *ex officio*; and

(*p*) one officer not below the rank of Joint Secretary to the Government of India in the Ministry or Department of the Central Government having administrative control of the Technical Education, *ex officio*, as Member Secretary.

(*3*) The Council shall have a Secretariat with officials to be appointed by the Statutes.

(*4*) The Council, may, constitute a Standing Committee of the School of Planning and Architecture Council to assist the Council in discharge of its duties and responsibilities.

**34. Term of office of vacancies among, and allowances payable to, Members of Council.**—(*1*) Save as otherwise provided in this section, the term of office of a Member of the Council, other than an *ex officio* Member, shall be three years from the date of notification.

(*2*) The terms of office of an *ex officio* Member shall continue so long as he holds office by virtue of which he is such a Member.

(*3*) The term of office of a member nominated under clause (*b*) of sub-section (*2*) of section 33 shall expire as soon as he ceases to be Member of the House, which elected him.

(*4*) The term of office of a Member of the Council nominated or elected to fill a casual vacancy shall continue for the remainder of the term of the Member in whose place he has been appointed.

(*5*) Notwithstanding anything contained in this section an outgoing Member of the Council shall, unless the Central Government otherwise directs, continue in office until another person is appointed as a Member in his place.

(*6*) The members of the Council shall be entitled to such travelling and other allowances, as may be prescribed, for attending meetings of the Council or the Committees thereof.

**35. Functions of Council.**—(*1*) It shall be the general duty of the Council to co-ordinate the activities of all the Schools.

(*2*) Without prejudice to the provisions of sub-section (*1*), the Council shall perform the following functions, namely:—

(*a*) to advise on policy matters relating to the duration of the courses, the degrees and other academic distinctions to be conferred by the Schools, admission standards and other academic matters;

(*b*) to recommend to the Central Government, proposals for establishment of new Schools of Planning and Architecture;

(*c*) to deliberate on such matters of common interest to Schools as may be referred to it by any School;

(*d*) to lay down policy regarding cadres, methods of recruitment and conditions of service of employees, institution of scholarships and freeships, levying of fees and other matters of common interest;

(*e*) to examine the development plans of each School and to approve such of them as are considered necessary and also to indicate broadly the financial implications of such approved plans;

(*f*) to advise the Visitor, if so required, in respect of any function to be performed by him under this Act; and

(*g*) to perform such other functions as may be referred to it by the Central Government:

Provided that nothing in this section shall derogate the powers and functions vested in the Board or Senate or other authorities of a School.

**36. Chairperson of Council.**—(*1*) The Chairperson of the Council shall ordinarily preside at the meetings of the Council:

Provided that in his absence, the Vice-Chairperson of the Council shall preside at the meetings of the Council.

(*2*) It shall be the duty of the Chairperson of the Council to ensure that the decisions taken by the Council are implemented.

(*3*) The Chairperson shall exercise such other powers and perform such other duties as are assigned to him by this Act.

(*4*) The Council shall meet once in every year and follow such procedure in its meetings as may be prescribed.

**37. Power to make rules in respect of matters in this Chapter.**—(*1*) The Central Government may, after previous publication, by notification, make rules to carry out the purposes of this Act.

(*2*) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the manner and the conditions for providing provident fund and pension fund or insurance scheme under sub-section (*1*) of section 26;

(*b*) the travelling and other allowances for the Members for attending the meetings of the Council or the Committees thereof under sub-section (*6*) of section 34;

(*c*) the procedure to be followed in the meetings of the Council under sub-section (*4*) of section 36.

(*3*) Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

## CHAPTER VI

## MISCELLANEOUS

**38. Acts and proceedings not to be invalidated by vacancies, etc.**—No act of the Council, or any School or Board or Senate or any other body set up under this Act or the Statutes, shall be invalid merely by reason of—

(*a*) any vacancy or defect in the constitution thereof; or

(*b*) any defect in the election, nomination or appointment of a person acting as a Member thereof; or

(*c*) any irregularity in its procedure not affecting the merits of the case.

**39. Returns and information to be provided to Central Government.**—Each School shall furnish to the Central Government such returns or other information with respect to its policies or activities as the Central Government may, for the purpose of reporting to Parliament or for the making of policy, from time to time require.

**40. Power to remove difficulties.**—(*1*) If any difficulty arises in giving effect to the provisions of this Act the Central Government, may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act as may appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of a period of two years from the date on which this Act receives the assent of the President.

(*2*) Every order made under this section shall, as soon as may be, after it is made, be laid before each House of Parliament.

**41. School to be public authority under Right to Information Act, 2005.**—The provisions of the Right to Information Act, 2005 (22 of 2005) shall apply to each School, as if it were a public authority defined in clause (*h*) of section 2 of the Right to Information Act, 2005.

**42. Transitional provisions.**—Notwithstanding anything contained in this Act—

(*a*) the Board of Governors of every School functioning as such immediately before the commencement of this Act shall continue to so function until a new Board is constituted for that School under this Act, but on the constitution of a new Board under this Act, the Members of the Board holding office before the constitution shall cease to hold office;

(*b*) every Academic Council constituted in relation to every School before the commencement of this Act shall be deemed to be the Senate constituted under this Act until a Senate is constituted under this Act for that School but on the constitution of the new Senate under this Act, the Members of the Academic Council holding office before such constitution shall cease to hold office;

(*c*) the Board of Governors, Finance Committee, Academic Council, Executive Council, Building and Works Committee and such other Committees of every School functioning as such immediately before the commencement of this Act shall continue to so function until a new Board is constituted for the School under this Act, but on the constitution of a new Board under this Act, the Members of the Board of Governors, Finance Committee, Academic Council, Building and Works Committee and such other Committees holding office before such constitution shall cease to hold office;

(*d*) any student who joined classes of the existing School on or after the academic year 2008-2009 or completed the course on or after the academic year 2011-2012 shall for the purpose of clause (*c*) of sub-section (*1*) of section 7, be deemed to have pursued a course of study in the existing Schools located at Bhopal and Vijayawada only if such student has not already been awarded degree or diploma for the same course of study.

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THE SCHEDULE

[*See* section 3(*k*) and section 4]

| (1) | (2) | (3) | (4) | (5) |
|---|---|---|---|---|
| SI. No. | Name of the State | Name of the existing School | Location | Name of School incorporated under this Act |
| 1. | Delhi | School of Planning and Architecture, being a society registered under the Societies Registration Act, 1860 (21 of 1860) | New Delhi | School of Planning and Architecture, New Delhi. |
| 2. | Madhya Pradesh | School of Planning and Architecture, being a society registered under the Societies Registration Act, 1860 (21 of 1860) | Bhopal | School of Planning and Architecture, Bhopal. |
| 3. | Andhra Pradesh | School of Planning and Architecture, being a society registered under the Societies Registration Act, 1860 (21 of 1860) | Vijayawada | School of Planning and Architecture, Vijayawada. |

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